

HOUSE No. 4137

The Commonwealth of Massachusetts

PRESENTED BY:

David Paul Linsky and Carmine Lawrence Gentile

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town to establish a millennium fund of the Wayland Free Public Library.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>5/8/2025</i>

HOUSE No. 4137

By Representatives Linsky of Natick and Gentile of Sudbury, a petition (accompanied by bill, House, No. 4137) of David Paul Linsky (by vote of the town) that the town of Wayland be authorized to establish a millennium fund of the Wayland Free Public Library. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town to establish a millennium fund of the Wayland Free Public Library.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding section 53 of chapter 44 of the General Laws or any other
2 general or special law to the contrary, the Town of Wayland may establish and maintain a
3 separate purpose fund to be known as the Millennium Fund of the Wayland Free Public Library,
4 hereinafter referred to as the fund. The fund shall be used exclusively to support the public
5 libraries in the Town of Wayland beyond appropriations of the town therefor.

6 SECTION 2. Notwithstanding section 53A of chapter 44 and section 11 of chapter 78 of
7 the General Laws or any other general or special law to the contrary, the Board of Library
8 Trustees or its designee, hereinafter referred to as the Trustees, may accept grants or gifts of
9 funds, including gifts of securities, into the fund. All grants or gifts of funds offered to the town
10 for library purposes shall be deposited into the fund upon acceptance by the Trustees; provided,
11 however, that a donor may provide written instructions at the time of donation that the funds
12 offered shall be deposited in another fund or subject to such other restrictions as the donor may

13 elect. Any interest, dividends, revenue, or growth accrued or generated by the fund shall be
14 added to and shall become a part of the fund. The fund shall be available to the Trustees, in its
15 sole discretion and authority and without further appropriation, to achieve the purposes specified
16 in section 1.

17 SECTION 3. Notwithstanding sections 45 through 47, inclusive, of chapter 41 of the
18 General Laws or any other general or special law to the contrary, the Trust Fund Commissioners,
19 hereinafter referred to as the Commissioners, shall be the custodian of the fund and shall
20 maintain the fund as a separate revenue account. The Commissioners may invest and reinvest the
21 fund pursuant to chapter 203C of the General Laws. The Town Treasurer shall expend therefrom
22 moneys as directed by the Trustees. The books and records of the fund shall be audited annually
23 by an independent auditor in accordance with accepted accounting practices. A copy of the audit
24 shall be provided annually to the Trustees and the Select Board.

25 SECTION 4. Within 30 days of the effective date of this act, the Commissioners shall
26 inspect the records of the Commissioners and Trustees and determine what existing monies of
27 the town were intended by donors to be a part of the fund and vote to transfer such monies into
28 the fund. Such monies shall thereafter be subject to this act.

29 SECTION 5. Notwithstanding section 53A½ of chapter 44 of the General Laws or any
30 other general or special law to the contrary, the trustees may, in its sole discretion and authority,
31 accept gifts of tangible personal property on behalf of the town from the federal government, a
32 charitable foundation, private corporation, individual, or from the commonwealth or any political
33 subdivision thereof, and may, in its sole discretion and authority, use said gifts without specific
34 appropriation thereof, for the purpose of such a gift; provided, however, that such purposes are to

- 35 achieve the purposes specified in section 1, or, if no restrictions are attached to the gift, to
- 36 achieve the purposes specified in section 1.

37 SECTION 6. This act shall take effect upon its passage.